

STATE OF NEW YORK

2235--B

2025-2026 Regular Sessions

IN SENATE

January 16, 2025

Introduced by Sens. GOUNARDES, SALAZAR, BAILEY, BASKIN, BRISPORT, BROUK, CLEARE, COMRIE, COONEY, FAHY, FERNANDEZ, GIANARIS, GONZALEZ, HARCKHAM, HINCHEY, JACKSON, KAVANAGH, KRUEGER, LIU, MAY, MAYER, MYRIE, PARKER, RAMOS, RIVERA, SANDERS, SEPULVEDA, SERRANO, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Codes in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the criminal procedure law, the executive law, the general municipal law, the education law, the correction law and the public officers law, in relation to prohibiting and regulating the discovery and disclosure of immigration status; and to repeal certain provisions of the correction law relating thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 1.20 of the criminal procedure law is amended by
2 adding five new subdivisions 46, 47, 48, 49 and 50 to read as follows:

3 46. "Immigration authorities" means any officer, employee, or govern-
4 ment employee who is responsible for enforcement of the federal Immi-
5 gration and Nationality Act, including any officer or agent of United
6 States Immigration and Customs Enforcement or United States Customs and
7 Border Protection.

8 47. "Immigration enforcement" means the enforcement of any civil
9 provision of the federal Immigration and Nationality Act or any
10 provision of law that penalizes a person's presence in, entry into, or
11 reentry into the United States.

12 48. "Immigration law" means any civil provision of the federal Immi-
13 gration and Nationality Act and any provision of law that penalizes a
14 person's presence in, entry into, or reentry into the United States.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD05168-06-6

49. "Immigration detainer" means any document, form, or other communication requesting or directing that a police officer, peace officer, or government entity detain or maintain custody of an individual, for any period of time, for pickup by or transfer to immigration authorities.

50. "Civil immigration warrant" means any warrant for a violation of civil immigration law that is not issued by a judge appointed pursuant to Article III of the United States constitution or a federal magistrate judge appointed pursuant to 28 USC § 631, and includes any warrant entered into the national crime information center database.

§ 2. The criminal procedure law is amended by adding a new article 145 to read as follows:

ARTICLE 145

PROCEDURES FOR POLICE OFFICERS, PEACE OFFICERS, AND SCHOOL RESOURCE OFFICERS PERTAINING TO IMMIGRATION ENFORCEMENT

Section 145.05 Duties of police officers, peace officers, and school resource officers; immigration.

145.10 Direction by immigration authorities.

145.15 Immigration detainer; questioning, investigation or interrogation prohibited.

145.20 Inquiry into and collection of information about citizenship or immigration status prohibited.

145.25 Notification of immigration authorities prohibited.

145.30 Transfer of custody to immigration authorities.

145.35 Entry of immigration status into a database.

145.40 Immigration authorities as interpreters prohibited.

145.45 Written consent for interview.

145.50 Receipt of information regarding citizenship.

145.55 Compliance with court orders and judicial warrants.

145.60 Application of laws.

§ 145.05 Duties of police officers, peace officers, and school resource officers; immigration.

The duties and authority of police officers, peace officers, and school resource officers shall not include authority to engage in immigration enforcement. Police officers, peace officers, and school resource officers shall not use public resources for immigration enforcement.

§ 145.10 Direction by immigration authorities.

No police officer, peace officer, or school resource officer shall be subject to the direction or supervision of immigration authorities. No police officer, peace officer, or school resource officer shall participate in or be subject to any agreement for the purpose of immigration enforcement.

§ 145.15 Immigration detainer; questioning, investigation or interrogation prohibited.

No police officer, peace officer, or school resource officer shall question, investigate, or interrogate an individual solely on the basis of an immigration detainer, a civil immigration warrant, or an actual or suspected violation of immigration law.

§ 145.20 Inquiry into and collection of information about citizenship or immigration status prohibited.

1. No police officer, peace officer, or school resource officer shall inquire about a person's citizenship, immigration status, nationality, or country of origin, unless required by law or necessary to administer a public program or benefit sought by that person.

2. No police officer, peace officer, or school resource officer shall collect information regarding citizenship, immigration status, national-

ity, or country of origin, unless required by law or necessary to administer a public program or benefit sought by that person.

§ 145.25 Notification of immigration authorities prohibited.

No police officer, peace officer, or school resource officer shall notify or otherwise communicate with immigration authorities regarding: (i) the date, time, or location that an individual will be released from custody; (ii) the time, date, or location of an individual's court appearance; or (iii) any other information available to police officers, peace officers, or school resource officers through or as a result of such employment as a police officer, peace officer, or school resource officer.

§ 145.30 Transfer of custody to immigration authorities.

No police officer, peace officer, or school resource officer shall transfer or facilitate the transfer of individuals in their custody to the custody of immigration authorities absent a valid court order or judicial warrant issued by an independent judge appointed pursuant to Article III of the United States constitution or federal magistrate judge appointed pursuant to 28 USC § 631 commanding the arrest of such individual.

§ 145.35 Entry of immigration status into a database.

No police officer, peace officer, or school resource officer shall enter a person's immigration status into any database maintained by any government entity unless required or necessary to administer a public program or benefit sought by such person.

§ 145.40 Immigration authorities as interpreters prohibited.

No police officer, peace officer, or school resource officer shall use immigration authorities as interpreters for law enforcement matters relating to individuals being interviewed, interrogated, investigated, or taken into custody.

§ 145.45 Written consent for interview.

1. In any instance in which immigration authorities are permitted access to an individual in the custody of a police officer, peace officer, or school resource officer for the purpose of being interviewed, the officer shall provide the individual with a written consent form that explains the purpose of the interview, that the interview is voluntary, and that they may decline to be interviewed or may choose to be interviewed with their attorney present. The written consent form shall be provided in English, Spanish, and the five most widely spoken languages in the county where the officer's agency or department is located.

2. After providing an individual in custody with a written consent form pursuant to subdivision one of this section, an officer shall keep a written record of whether the individual declined an interview, consented to an interview, or asked for an attorney to be present at the interview, and whether an interview occurred. The office or agency employing such officer shall maintain all such written records and shall compile an annual summary identifying the number of requests for interviews received and whether each individual declined the interview, consented to the interview, or asked for an attorney to be present at the interview, and how many interviews occurred. Such summary shall not include the personally identifiable information of any individual in custody, and shall be a public record.

§ 145.50 Receipt of information regarding citizenship.

The provisions of this article shall not prohibit police officers, peace officers, or school resource officers from sending or receiving

information regarding an individual's citizenship or immigration status to or from any local, state, or federal agency.

§ 145.55 Compliance with court orders and judicial warrants.

The provisions of this article shall not prohibit officers from complying with valid court orders or judicial warrants issued by an independent judge appointed pursuant to Article III of the United States constitution or federal magistrate judge appointed pursuant to 28 USC § 631.

§ 145.60 Application of laws.

The provisions of this article shall apply notwithstanding any other provisions of state or local law and shall not be construed to in any way expand the authority of state and local law enforcement officers to participate in immigration enforcement.

§ 3. The executive law is amended by adding a new section 256-b to read as follows:

§ 256-b. Duties of local probation departments regarding immigration enforcement. 1. For the purposes of this section, the terms "immigration authorities", "immigration enforcement", "immigration law", "immigration detainer" and "civil immigration warrant" shall have the same meaning as defined in section 1.20 of the criminal procedure law.

2. No probation agency or department, nor any employee thereof, shall inquire about a person's citizenship, immigration status, nationality, or country of origin, unless required by law or necessary to administer a public program or benefit sought by such person.

3. No probation agency or department, nor any employee thereof, shall communicate with immigration authorities regarding a person presently or formerly under the supervision of such agency or department or disclose to immigration authorities information gained in the course of employment or available as a result of employment with such agency or department.

4. No probation agency or department, nor any employee thereof, shall collect information about a person's citizenship, immigration status, nationality, or country of origin, unless required by law or necessary to administer a public program or benefit sought by such person.

5. No probation agency or department, nor any employee thereof, shall question, investigate, or interrogate an individual solely on the basis of an immigration detainer, a civil immigration warrant, or an actual or suspected violation of immigration law.

6. No probation agency or department, nor any employee thereof, shall permit non-local civil law enforcement agencies to access non-public areas of property or facilities under the control of such agency or department unless presented with a judicial warrant signed by a judge or independent magistrate authorizing a search or seeking the arrest of an individual present at the time the judicial warrant is presented.

7. In any instance in which immigration authorities are permitted access to an individual under the supervision of a probation agency or department for the purpose of being interviewed, the probation agency or department shall provide the individual with a written consent form that explains the purpose of the interview, that the interview is voluntary, and that they may decline to be interviewed or may choose to be interviewed with their attorney present. The written consent form shall be provided in English, Spanish, and the five most widely spoken languages in the county where the officer's agency or department is located.

8. No probation agency or department, nor any employee thereof, shall enter a person's immigration status into any database maintained by any

1 government entity unless required or necessary to administer a public
2 program or benefit sought by such person.

3 9. No probation agency or department, nor any employee thereof, shall
4 investigate a person's immigration status or immigration history.

5 10. No probation agency or department, nor any employee thereof, shall
6 include a person's immigration status or immigration history in court-
7 ordered reports.

8 11. No probation agency or department, nor any employee thereof, shall
9 use immigration authorities as interpreters for law enforcement matters
10 relating to individuals under the supervision of such agency or depart-
11 ment.

12 12. The provisions of this section shall not prohibit employees of
13 probation agencies or departments from sending or receiving information
14 regarding an individual's citizenship or immigration status to or from
15 any local, state, or federal agency.

16 13. The provisions of this section shall not prohibit probation
17 departments or their employees from complying with valid court orders or
18 judicial warrants issued by an independent judge appointed pursuant to
19 Article III of the United States constitution or federal magistrate
20 judge appointed pursuant to 28 USC § 631.

21 14. The provisions of this section shall apply notwithstanding any
22 other provisions of state or local law and shall not be construed to in
23 any way expand the authority of state and local law enforcement officers
24 to participate in immigration enforcement.

25 § 4. The executive law is amended by adding a new article 15-AA to
26 read as follows:

27 ARTICLE 15-AA

28 RESTRICTIONS ON IMMIGRATION ENFORCEMENT BY STATE EMPLOYEES

29 Section 319. Definitions.

30 319-a. Restrictions on immigration enforcement by state employ-
31 ees.

32 § 319. Definitions. As used in this article, the following terms shall
33 have the following meanings:

34 1. "State entity" means: any agency under the executive authority of
35 the governor; any agency for which the governor appoints the commission-
36 er or highest ranking employee; any public benefit corporation, public
37 authority, board, or commission for which the governor appoints the
38 chief executive or a majority of the board members; any division,
39 department, or office regulated under this chapter; the department of
40 education and any public school district or charter school, division,
41 office, or institution under the supervision of the department of educa-
42 tion; all offices defined in article one of the public officers law; the
43 department of civil service or any of its civil divisions as defined in
44 article one of the civil service law; and any contractor while perform-
45 ing services on behalf of the state.

46 2. "State employee" means any individual employed by: any agency under
47 the executive authority of the governor; any agency for which the gover-
48 nor appoints the commissioner or highest ranking employee; any public
49 benefit corporation, public authority, board, or commission for which
50 the governor appoints the chief executive or a majority of the board
51 members; any division, department, or office regulated under this chap-
52 ter; the department of education and any public school district or char-
53 ter school, division, office, or institution under the supervision of
54 the department of education; all offices defined in article one of the
55 public officers law; the department of civil service or any of its civil

1 divisions as defined in article one of the civil service law; or any
2 contractor while performing services on behalf of the state.

3 3. For the purposes of this section, the terms "immigration authori-
4 ties", "immigration enforcement", "immigration law", "immigration
5 detainer" and "civil immigration warrant" shall have the same meaning as
6 defined in section 1.20 of the criminal procedure law.

7 § 319-a. Restrictions on immigration enforcement by state employees.

8 1. No state employee shall use state resources, including but not limit-
9 ed to time spent while on duty or any state property, for immigration
10 enforcement purposes.

11 2. No state entity or state employee shall disclose to immigration
12 authorities an individual's personally identifiable information, includ-
13 ing, but not limited to, a person's name, social security number, phys-
14 ical description, home address, telephone number, financial information,
15 medical information, place of employment or education.

16 3. No state entity or state employee shall inquire about a person's
17 citizenship, immigration status, nationality, or country of origin,
18 unless required by law or necessary to administer a public program or
19 benefit sought by that person.

20 4. No state entity or state employee shall collect information about a
21 person's citizenship, immigration status, nationality, or country of
22 origin, unless required by law or necessary to administer a public
23 program or benefit sought by such person.

24 5. No state entity or state employee shall question, investigate, or
25 interrogate an individual solely on the basis of an immigration detain-
26 er, a civil immigration warrant, or an actual or suspected violation of
27 immigration law.

28 6. No state entity or state employee shall permit non-local civil law
29 enforcement agencies to access non-public areas of property or facili-
30 ties owned by or under the control of the state unless presented with a
31 judicial warrant signed by a judge or independent magistrate authorizing
32 a search or seeking the arrest of an individual present at the time the
33 judicial warrant is presented.

34 7. No state entity or state employee shall enter a person's immi-
35 gration status into any database maintained by any state entity unless
36 required or necessary to administer a public program or benefit sought
37 by that person.

38 8. No state entity or state employee shall use immigration authorities
39 as interpreters for law enforcement matters relating to individuals such
40 entities or employees interact with as part of their employment duties.

41 9. All requests for assistance made by immigration authorities to
42 state entities or state employees acting in the course of their duties
43 and all other communications between state employees and immigration
44 authorities shall be recorded. Each state entity whose employees are
45 subject to this section shall issue an annual report listing the number
46 of such requests or communications and stating the content and outcome
47 of each request or communication, which shall be promptly delivered to
48 the office of the attorney general and which shall be a public record.

49 10. This section shall not prohibit state employees from sending or
50 receiving information regarding an individual's citizenship or immi-
51 gration status to or from any local, state, or federal agency.

52 11. The provisions of this article shall not prohibit state employees
53 from complying with valid court orders or judicial warrants issued by an
54 independent judge appointed pursuant to Article III of the United States
55 constitution or federal magistrate judge appointed pursuant to 28 USC §
56 631.

12. The provisions of this article shall apply notwithstanding any other provisions of state or local law and shall not be construed to in any way expand the authority of state employees to participate in immigration enforcement.

§ 5. The general municipal law is amended by adding a new article 19-D to read as follows:

ARTICLE 19-D

DUTIES OF MUNICIPAL CORPORATIONS AND THEIR EMPLOYEES PERTAINING

TO IMMIGRATION ENFORCEMENT

Section 996. Restriction on use of local resources for immigration enforcement.

§ 996. Restriction on use of local resources for immigration enforcement. (a) For the purposes of this section, the terms "immigration authorities", "immigration enforcement", "immigration law", "immigration detainer" and "civil immigration warrant" shall have the same meaning as defined in section 1.20 of the criminal procedure law.

(b) No resources of any municipal corporation shall be utilized for immigration enforcement. For the purposes of this subdivision, resources of a municipal corporation shall include, but not be limited to, time spent by the municipal corporation's employees, officers, contractors, or subcontractors while on duty and the use of any municipal corporation's property.

(c) No municipal corporation, nor any employee thereof, shall disclose to immigration authorities an individual's personally identifiable information, including but not limited to such person's name, social security number, physical description, any associated addresses, telephone number, financial information, medical information, or place of employment or education.

(d) No municipal corporation, nor any employee thereof, shall question, investigate, or interrogate an individual on the basis of an immigration detainer, a civil immigration warrant, or an actual or suspected violation of immigration law.

(e) No municipal corporation, nor any employee thereof, shall inquire about a person's citizenship, immigration status, nationality, or country of origin, unless required by law or necessary to administer a public program or benefit sought by such person.

(f) No municipal corporation nor any employee thereof, shall collect information about a person's citizenship, immigration status, nationality, or country of origin, unless required by law or necessary to administer a public program or benefit sought by such person.

(g) No municipal corporation, nor any employee thereof, shall enter a person's immigration status into any database maintained by any municipal corporation unless required or necessary to administer a public program or benefit sought by such person.

(h) No municipal corporation, nor any employee thereof, shall permit non-local civil law enforcement agencies to access non-public areas of property or facilities under the control of such municipal corporation unless presented with a judicial warrant signed by a judge or independent magistrate authorizing a search or seeking the arrest of an individual present at the time the judicial warrant is presented.

(i) No municipal corporation, nor any employee thereof, shall use immigration authorities as interpreters for law enforcement matters relating to individuals such corporation or employees interact with as part of their employment duties.

(j) All requests for assistance made by immigration authorities to law enforcement agencies within a municipal corporation and all other commu-

nications between law enforcement officers within a municipal corporation and immigration authorities shall be recorded. Each municipal corporation shall issue an annual report listing the number of such requests or communications and stating the content and outcome of each request or communication, which shall be promptly delivered to the office of the attorney general and which shall be a public record.

(k) This section shall not prohibit municipal employees from sending or receiving information regarding an individual's citizenship or immigration status to or from any local, state, or federal agency.

(l) The provisions of this article shall not prohibit municipal corporations or their employees from complying with valid court orders or judicial warrants issued by an independent judge appointed pursuant to Article III of the United States constitution or federal magistrate judge appointed pursuant to 28 USC § 631, or from complying with valid writs of habeas corpus ad prosequendum or habeas corpus ad testificandum issued by a state court with the authority to do so pursuant to sections 580.30 and 650.30 of the criminal procedure law upon application by a district attorney.

(m) The provisions of this article shall apply notwithstanding any other provisions of state or local law and shall not be construed to in any way expand the authority of state and local employees to participate in immigration enforcement.

§ 6. The education law is amended by adding a new article 25 to read as follows:

ARTICLE 25

DUTIES OF EDUCATIONAL AGENCIES AND THEIR EMPLOYEES AND CONTRACTORS PERTAINING TO IMMIGRATION ENFORCEMENT

Section 1300. Definitions.

1301. Restriction on collection and disclosure of student data.

1302. Duties of educational agencies and their employees
pertaining to immigration enforcement.

§ 1300. Definitions. As used in this article the following terms shall have the following meanings:

1. "Educational agency" shall have the same definition as in section two-d of this title and shall also include charter schools subject to the provisions of article fifty-six of this chapter.

2. "School" shall have the same definition as in section two-d of this title and shall also include charter schools subject to the provisions of article fifty-six of this chapter.

3. "Higher education agency" shall mean any college, university, or postsecondary educational institution within the state university of New York, city university of New York, and its affiliate senior and community colleges, or other institutions receiving state financial assistance or with tuition assistance program eligible students.

4. "School employee" means any individual employed by an educational agency.

5. "School safety personnel" means any law enforcement officer or public or private security personnel, including school resource officers, employed, contracted, or otherwise retained by an educational agency.

6. "Third-party contractor" shall have the same definition as in section two-d of this title.

7. "Directory information", as applied to student data, means directory information as defined in section 99.3 of title thirty-four of the code of federal regulations implementing the family educational rights

1 and privacy act, section twelve hundred thirty-two-g of title twenty of
2 the United States code.

3 8. "Personally identifiable information". as applied to student data,
4 shall have the same definition as in section two-d of this title.

5 9. "School property" shall mean school property as defined in section
6 twenty-eight hundred one of this chapter.

7 10. "Campus property" shall mean all buildings, structures, facili-
8 ties, and grounds owned, leased, or operated by a higher education agen-
9 cy institution, including but not limited to classrooms, administrative
10 offices, libraries, laboratories, student centers, athletic facilities,
11 parking areas, and any dormitory, residence hall, apartment, or other
12 student housing facility owned, leased, or operated by the institution,
13 whether located on or off campus and accessible only by students, facul-
14 ty, staff, and personnel employed by the higher education agency.

15 11. For the purposes of this section, the terms "immigration authori-
16 ties" or "immigration enforcement" shall have the same meaning as
17 defined in section 1.20 of the criminal procedure law.

18 § 1301. Restriction on collection and disclosure of student data. 1.

19 (a) No educational agency, higher education agency, school employee,
20 school safety personnel, or third-party contractor shall collect infor-
21 mation about a person's citizenship, immigration status, nationality, or
22 country of origin, unless required by law or necessary to administer a
23 public program or benefit sought by such person.

24 (b) Within one hundred eighty days of the effective date of this
25 section, all educational agencies shall review their directory informa-
26 tion policies to ensure that they do not include information that may
27 inadvertently disclose a student or parent's immigration status, includ-
28 ing place of birth, nationality, or passport information, and make any
29 necessary changes to comply with the provisions of this subdivision.

30 (c) Within one hundred eighty days of the effective date of this
31 section, all educational agencies shall review their current data
32 collection practices to determine whether any information collected by
33 the district could unnecessarily disclose a student or parent's immi-
34 gration status and whether collection of the information is required.

35 2. (a) No educational agency, higher education agency, school employ-
36 ee, school safety personnel, or third-party contractor shall disclose
37 either a student's personally identifiable information or information
38 that either reveals or would tend to reveal a student's immigration
39 status, including but not limited to, nationality or place of birth, to
40 immigration authorities.

41 (b) In the event that immigration authorities request a student's
42 personally identifiable information, the educational agency shall imme-
43 diately notify the student's parents or guardians.

44 (c) All educational agencies shall develop a protocol in the event
45 that immigration authorities request student data.

46 (d) All higher education agencies shall develop a protocol in the
47 event that immigration authorities request student data, including a
48 student's residential or campus dormitory information.

49 3. All requests for student data made by immigration authorities to
50 educational agencies, higher education agencies, school employees,
51 school safety personnel, or third-party contractors shall be recorded.
52 Each educational agency and higher education agency whose employees are
53 subject to this section shall issue an annual report listing the number
54 of such requests or communication, which shall be promptly delivered to
55 the office of the attorney general and the chief privacy officer

1 appointed pursuant to subdivision two of section two-d of this title.
2 This annual report shall be a public record.

3 4. This section shall not prohibit educational agency employees, high-
4 er educational agency employees, school employees, school safety person-
5 nel, or third-party contractors from sending or receiving information
6 regarding an individual's citizenship or immigration status to or from
7 any local, state, or federal agency.

8 5. The provisions of this article shall not prohibit educational agen-
9 cy employees, higher education agency employees, school employees,
10 school safety personnel, or third-party contractors from complying with
11 valid court orders or judicial warrants issued by an independent judge
12 appointed pursuant to article III of the United States constitution or
13 federal magistrate judge appointed pursuant to 28 USC § 631.

14 6. Within one hundred eighty days of the effective date of this
15 section, the commissioner, in consultation with the chief privacy offi-
16 cer, shall promulgate regulations to enforce this section and develop
17 one or more model policies for use by educational agencies and higher
18 education agencies. Such regulations shall include guidelines on devel-
19 oping a protocol in the event that immigration authorities request a
20 student's personally identifiable information, training requirements for
21 higher education agency employees, school employees and school safety
22 personnel, and any additional requirements for third-party contractors.
23 Following promulgation of such regulations, each educational agency
24 shall update its existing data security and privacy policy to ensure
25 that it is consistent with state and federal law.

26 7. (a) For the purposes of this section, the duties, protections, and
27 prohibitions set forth herein shall also apply to institutions of higher
28 education, including the city university of New York and the state
29 university of New York. Such institutions shall be deemed educational
30 agencies under the general supervision of the board of regents and the
31 commissioner.

32 (b) No provision in this section shall be construed to diminish or
33 impair the independent governance authority of the boards of trustees of
34 the city university of New York or the state university of New York.

35 (c) The obligations described in this section shall further extend to
36 all property owned, leased, or operated by such institutions, including
37 dormitories, residential facilities, and other campus-affiliated or
38 campus-adjacent areas under their jurisdiction.

39 § 1302. Duties of educational agencies and their employees pertaining
40 to immigration enforcement. 1. No educational agency, higher education
41 agency, school employee, school safety personnel, or third-party
42 contractor shall inquire about a person's citizenship, immigration
43 status, nationality, or country of origin, unless required by law or
44 necessary to administer a public program or benefit sought by such
45 person, including if the information sought is protected by the attor-
46 ney-client privilege. No such agency, employee, personnel, or contractor
47 shall investigate an individual regarding their immigration status.

48 2. (a) No educational agency, higher education school employee, school
49 safety personnel, or third-party contractor shall permit non-local civil
50 law enforcement to access non-public areas of school property and campus
51 property unless presented with a judicial warrant signed by a judge or
52 independent magistrate authorizing a search or seeking the arrest of an
53 individual present at the time the judicial warrant is presented.

54 (b) In the event that non-local civil law enforcement seek to detain
55 or interrogate a student, the educational agency or higher education

1 agency shall immediately notify the student's parents or guardians or
2 emergency contact.

3 (c) All educational agencies and higher education agencies shall
4 develop a protocol in the event that non-local civil law enforcement
5 seek to access non-public areas of school property or seek to detain or
6 interrogate a student in the custody of the school district.

7 3. All requests for assistance made by immigration authorities to
8 educational agencies, higher education agencies, school employees,
9 school safety personnel, or third-party contractors acting in the course
10 of their duties and all other communications between these parties shall
11 be recorded. Each educational agency and higher education agency shall
12 issue an annual report listing the number of each request or communi-
13 cation and stating the content and outcome of each request or communi-
14 cation, which shall be promptly delivered to the office of the attorney
15 general and which shall be a public record.

16 4. The provisions of this article shall not prohibit state employees
17 from complying with valid court orders or judicial warrants issued by an
18 independent judge appointed pursuant to Article III of the United States
19 constitution or federal magistrate judge appointed pursuant to 28 USC §
20 631.

21 5. (a) The commissioner shall promulgate regulations to enforce this
22 section and develop one or more model policies for use by educational
23 agencies.

24 (b) Such regulations shall include guidelines on developing a protocol
25 in the event that immigration authorities seek to access non-public
26 areas of school property or seek to detain or interrogate a student in
27 the custody of the school district.

28 (c) Such regulations shall include training requirements for school
29 employees and school safety personnel and any additional requirements
30 for third-party contractors.

31 (d) Such regulations shall also establish guidelines for incorporating
32 policies and procedures to safeguard the rights of undocumented students
33 into educational agencies' contracts or memoranda of understanding with
34 law enforcement as required by section twenty-eight hundred one-a of
35 this chapter.

36 6. Following the promulgation of the regulations established pursuant
37 to subdivision five of this section, each educational agency shall adopt
38 a district policy that complies with state law and regulations. If the
39 educational agency employs, contracts with, or otherwise retains local
40 law enforcement or public or private security personnel, it shall also
41 revise its written contract or memorandum of understanding in accordance
42 with the commissioner's regulations.

43 7. (a) The duties, protections, and prohibitions set forth in this
44 section shall also apply to institutions of higher education, including
45 the city university of New York and the state university of New York.
46 Such institutions shall be deemed educational agencies under the general
47 supervision of the board of regents and the commissioner.

48 (b) No provision in this section shall be construed to diminish or
49 impair the independent governance authority of the boards of trustees of
50 the city university of New York or the state university of New York.

51 (c) Such boards shall, however, issue guidance to ensure that institu-
52 tional policies, protocols, and agreements comply with the provisions of
53 this section and any regulations promulgated pursuant thereto.

54 (d) The obligations described in this section shall further extend to
55 all property owned, leased, or operated by such institutions, including

dormitories, residential facilities, and other campus-affiliated or campus-adjacent areas under their jurisdiction.

§ 7. Subdivision 1 of section 3625 of the education law, as amended by section 11-a of part A of chapter 56 of the laws of 2022, is amended to read as follows:

1. Form of transportation contracts. Every contract for transportation of school children shall be in writing or in an electronic form approved by the commissioner when available, and before such contract is filed with the department as required by subdivision two of this section, the same shall be submitted for approval to the superintendent of schools of said district and such contract shall not be approved and filed by such superintendent unless ~~he or she~~ they shall first investigate the same with particular reference to the type of conveyance, the character and ability of the driver, the routes over which the conveyances shall travel, the time schedule, and such other matters as in the judgement of the superintendent are necessary for the comfort and protection of the children while being transported to and from school. Every such contract for transportation of children shall contain an agreement upon the part of the contractor that the vehicle shall come to a full stop before crossing the track or tracks of any railroad and before crossing any state highway. Such contract shall also contain an agreement upon the part of the contractor that such contractor will comply with the district's policies regarding communication and coordination with immigration authorities as required by article twenty-five of this chapter. Failure to so comply shall be grounds for termination of the contract.

§ 8. Section 500-c of the correction law is amended by adding a new subdivision 4-a to read as follows:

4-a. (a) The chief administrative officer shall not, by formal agreement or otherwise, allow any officer or employee of a county correctional facility to be subject to the direction or supervision of immigration authorities, as defined in section 1.20 of the criminal procedure law.

(b) The chief administrative officer shall ensure that no officer or employee of a county correctional facility spends time while on duty or uses correctional facility resources for immigration enforcement, as defined in section 1.20 of the criminal procedure law.

(c) All requests for assistance made by immigration authorities to county jails or their officers acting in the course of their duties and all other communications between corrections personnel and immigration authorities shall be recorded. The chief administrative officer shall produce an annual report listing all such requests and communications and stating the content and outcome of request or communication, which shall be promptly delivered to the office of the attorney general and which shall be a public record.

§ 9. Section 147 of the correction law is REPEALED.

§ 10. Section 500-f of the correction law is REPEALED.

§ 11. Section 621 of the correction law is amended by adding a new subdivision 3 to read as follows:

3. This section shall not be construed to permit any law enforcement officer or agency of this state or its subdivisions to participate in or assist with immigration enforcement, as defined in section 1.20 of the criminal procedure law. All law enforcement officers or agencies furnishing information to agencies of other jurisdictions shall obtain from the recipient agency a certification that such information will not be used for immigration enforcement.

§ 12. The executive law is amended by adding a new section 63-e to read as follows:

1 § 63-e. Immigration status reports and databases. 1. The office of the
2 attorney general shall review all reports provided to it pursuant to
3 article fifteen-AA of this chapter, article nineteen-D of the general
4 municipal law, and article twenty of the correction law and shall
5 prepare an annual summary of such reports, which shall also identify any
6 alleged omissions or discrepancies in the reported information and any
7 information that may indicate a violation of state law. Such summary
8 shall be a public record.

9 2. The attorney general shall establish a system to solicit and
10 receive complaints from the public about improper use of resources by
11 state or local entities or employees for immigration enforcement and
12 improper sharing of information by state or local entities or employees
13 with immigration authorities. The attorney general shall investigate all
14 such complaints to determine whether a violation of state law occurred,
15 and may bring civil actions against state or local entities or employees
16 acting in their official capacity in the name of the people of the state
17 of New York to obtain appropriate equitable or declaratory relief if the
18 attorney general determines that a violation of state law occurred.

19 3. For any databases operated by state and local law enforcement agen-
20 cies, including databases maintained for the agency by private vendors,
21 the attorney general shall, by the first of January following the effec-
22 tive date of this section, in consultation with appropriate stakehold-
23 ers, publish guidance, audit criteria, and training recommendations
24 aimed at ensuring that such databases are governed in a manner that
25 limits the availability of information contained therein, to the fullest
26 extent practicable and consistent with federal and state law, to anyone
27 or any entity for the purpose of immigration enforcement. All state and
28 local law enforcement agencies are encouraged to adopt necessary changes
29 to database governance policies consistent with such guidance.

30 § 13. Subdivision 1 of section 17 of the public officers law is
31 amended by adding a new paragraph (aa) to read as follows:

32 (aa) For purposes of this section, the term "employee" shall include
33 all current or former employees of the state, the state university of
34 New York, the city university of New York; all current or former employ-
35 ees of any county, city, town, village, municipality, special district,
36 improvement district, community college, public authority, public bene-
37 fit corporation, board of cooperative educational services (BOCES),
38 vocational education and extension board, school district enumerated in
39 section one of chapter five hundred sixty-six of the laws of nineteen
40 hundred sixty-seven, public school district, participating employer in
41 the New York state and local retirement system, participating employ-
42 er in the New York state teachers' retirement system, participating employ-
43 er in the New York city employees' retirement system, participating
44 employer in the New York city police pension fund, participating employ-
45 er in the New York city fire pension fund, participating employer in the
46 teachers' retirement system of New York city, and participating employer
47 in the New York city board of education retirement system, that is
48 alleged to have criminally or civilly violated any federal, state, or
49 local law in connection with or resulting from their compliance with
50 article one hundred forty-five of the criminal procedure law, section
51 two hundred fifty-six-b of the executive law, article fifteen-AA of the
52 executive law, article nineteen-D of the general municipal law, section
53 five hundred-c of the correction law, subdivision three of section six
54 hundred twenty-one of the correction law, or section sixty-three-e of
55 the executive law, within the scope of their employment or duties,
56 provided that nothing in this section shall be construed to apply to

1 acts in violation of the provisions of law referenced in this subdivi-
2 sion.

3 § 14. This act shall take effect immediately; provided, however, that
4 the amendments to section 500-c of the correction law made by section
5 eight of this act shall not affect the repeal of such section and shall
6 be deemed repealed therewith.